



CCTV and Privacy in the Philippines: A Need for a Comprehensive Law on CCTV

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Introduction

The Philippines stands on a tight-rope, where we may fall into either side of ideological extremes on how we use technology as a society. One of these technologies, becoming the norm, are CCTVs. In every building whether public or private, closed-circuit television cameras go mainstream through statutory mandate, yet the legal framework governing them remains fundamentally incoherent.

The Metropolitan Manila Development Authority mandates traffic cameras¹. The Department of the Interior and Local Government requires surveillance in business establishments. The Safe Spaces Act (RA 11313)² demands CCTV installation for gender-based harassment prevention. Meanwhile, the Data Privacy Act (RA 10173)³ imposes retention limits, the Anti-Wiretapping Act (RA 4200)⁴ prohibits audio recording, and the Anti-Terrorism Act (RA 11479)⁵ grants expansive surveillance powers, each without reconciling contradictions with the others.

¹ Metropolitan Manila Development Authority (MMDA) Resolution No. 10-20 (2010), *Providing for the Installation and Operation of Closed-Circuit Television (CCTV) Cameras Along Major Thoroughfares and Intersections in Metro Manila* (Phil.), available at <https://mmda.gov.ph>.

² Republic Act No. 11313, *An Act Defining Gender-Based Sexual Harassment in Streets, Public Spaces, Online, Workplaces, and Educational or Training Institutions, Providing for Protective Measures and Prescribing Penalties Therefor* (Safe Spaces Act) (2019) (Phil.), available at https://lawphil.net/statutes/repacts/ra2019/ra_11313_2019.html.

³ Republic Act No. 10173, *An Act Protecting Individual Personal Information in Information and Communications Systems in the Government and the Private Sector, Creating for This Purpose a National Privacy Commission, and for Other Purposes* (Data Privacy Act of 2012) (Phil.), available at https://lawphil.net/statutes/repacts/ra2012/ra_10173_2012.html.

⁴ Republic Act No. 4200, *An Act to Prohibit and Penalize Wire Tapping and Other Related Violations of the Privacy of Communication, and for Other Purposes* (Anti-Wiretapping Act) (1965) (Phil.), available at https://lawphil.net/statutes/repacts/ra1965/ra_4200_1965.html.

⁵ Republic Act No. 11479, *An Act to Prevent, Prohibit and Penalize Terrorism, Thereby Repealing Republic Act No. 9372, Otherwise Known as the "Human Security Act of 2007"* (Anti-Terrorism Act of 2020) (Phil.), available at https://lawphil.net/statutes/repacts/ra2020/ra_11479_2020.html.



Such incoherence results from reactive, piecemeal policymaking that layered surveillance mandates over constitutional privacy guarantees without clear hierarchies or enforcement mechanisms. This article traces the evolution of Philippine CCTV regulation through three phases and argues that legislative consolidation is both necessary and urgent.

Theoretical and Constitutional Foundations

The 1987 Constitution protects the right "to be secure in [one's] persons, houses, papers, and effects against unreasonable searches and seizures of whatever nature"⁶ and does not limit privacy to physical intrusions but protects against "searches and seizures of whatever nature,"⁷ language sufficiently broad to encompass modern surveillance technologies.

Jurisprudence provides that privacy is foundational to human dignity and liberty. In *Morfe v. Mutuc*, the Court held that "liberty in the constitutional sense must mean more than freedom from unlawful governmental restraint; it must include privacy as well, if it is to be a repository of freedom."⁸ The Court further emphasized that "the right to be let alone is indeed the beginning of all freedom,"⁹ anchoring privacy not merely as a liberty interest but as essential to democratic citizenship itself.

In *Ople v. Torres*, Justice Puno articulated the normative foundations of privacy protection in the digital age, noting that privacy belongs to "the individual acting alone as well as to the individual acting in concert with others."¹⁰ This collective dimension proves critical in CCTV contexts, where surveillance of public spaces affects entire communities' freedom of movement and association.

⁶ CONST. (1987), art. III, § 2 (Phil.), available at <https://lawphil.net/consti/cons1987.html>

⁷ *Id.*

⁸ *Morfe v. Mutuc*, G.R. No. L-20387, Jan. 22, 1968, 130 Phil. 415 (1968) (Phil.), available at https://lawphil.net/judjuris/juri1968/jan1968/gr_l-20387_1968.html.

⁹ *Id.* at 424.

¹⁰ *Ople v. Torres*, G.R. No. 127685, July 23, 1998, 354 Phil. 948 (1998) (Phil.), available at https://lawphil.net/judjuris/juri1998/jul1998/gr_127685_1998.html.



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Philippine courts have adopted the "reasonable expectation of privacy"¹¹ test from United States jurisprudence, particularly the formulation articulated in *Katz v. United States*, an individual must exhibit "an actual (subjective) expectation of privacy"¹² that "society is prepared to recognize as reasonable."¹³

In *Spouses Hing v. Choachuy*, the Supreme Court applied this test to visual surveillance, holding that "video surveillance cameras are installed practically everywhere for the protection and safety of everyone. The installation of these cameras, however, should not cover places where there is reasonable expectation of privacy, unless the consent of the individual, whose right to privacy would be affected, was obtained."¹⁴

Critically, the Court extended privacy protections beyond residential spaces to "places where he has the right to exclude the public or deny them access"¹⁵ These include business offices and private properties. The decision further linked unauthorized visual surveillance to criminal anti-wiretapping prohibitions, recognizing that CCTV can constitute "eavesdropping, which is a crime under Republic Act No. 4200."¹⁶

Beyond physical privacy, Philippine law protects informational privacy in "the right of individuals to control information about themselves."¹⁷ The Data Privacy Act of 2012 (RA 10173)¹⁸ operationalized this principle by establishing that personal information, including video footage containing identifiable individuals, requires legitimate purpose, transparency, and security safeguards.

The emergence of habeas data as a constitutional remedy in *Vivares v. St. Theresa's College* further strengthened privacy protections, establishing that individuals whose "right to privacy in life, liberty or security is violated or threatened by an unlawful act or omission" in data gathering may seek judicial

¹¹ *Spouses Hing v. Choachuy*, G.R. No. 179736, June 17, 2013, 702 SCRA 468 (Phil.), available at https://lawphil.net/judjuris/juri2013/jun2013/gr_179736_2013.html.

¹² *Katz v. United States*, 389 U.S. 347, 361 (1967) (Harlan, J., concurring), available at <https://supreme.justia.com/cases/federal/us/389/347/>.

¹³ *Id.*

¹⁴ *Spouses Hing v. Choachuy*, supra note 11

¹⁵ *Id.*

¹⁶ *Id.*

¹⁷ *Vivares v. St. Theresa's College*, G.R. No. 202666, Sept. 29, 2014, 744 Phil. 451 (Phil.), available at https://lawphil.net/judjuris/juri2014/sep2014/gr_202666_2014.html

¹⁸ *Data Privacy Act of 2012*, supra note 3.



relief.¹⁹ This doctrine applies directly to CCTV operators, though procedural barriers render the remedy frequently inaccessible to ordinary citizens.

The constitutional privacy framework does not remain abstract but translates into concrete limits on government action. In *Pollo v. Constantino-David*,²⁰ The Supreme Court established that while privacy is constitutionally protected, "the constitutional guarantee is not a prohibition of all searches and seizures but only of 'unreasonable' searches and seizures."²⁰ The Court adopted the framework articulated in *O'Connor v. Ortega*,²¹ noting that the U.S. Supreme Court "laid down a balancing test under which government interests are weighed against the employee's reasonable expectation of privacy."²²

This balancing test proves critical for CCTV regulation. Surveillance systems, whether deployed by government agencies or mandated by administrative fiat, must satisfy constitutional reasonableness requirements. Under the *O'Connor*²³ framework adopted in *Pollo*, government surveillance must be: (1) "justified at its inception" by reasonable grounds for suspecting work-related misconduct or legitimate administrative needs; and (2) "permissible in its scope" such that "the measures adopted are reasonably related to the objectives of the search and not excessively intrusive."²⁴ These constitutional requirements bind all subsequent statutory and administrative action, yet as the following chronology demonstrates, Philippine CCTV regulation developed with minimal attention to these foundational constraints.

Phase 1: (2009–2011)

Philippine CCTV regulation began not with privacy considerations but with administrative convenience.

¹⁹ *Vivares v. St. Theresa's College*, supra note 17.

²⁰ *Pollo v. Constantino-David*, G.R. No. 181881, 663 Phil. 665, 685–86 (Oct. 18, 2011), https://lawphil.net/judjuris/juri2011/oct2011/gr_181881_2011.html.

²¹ *O'Connor v. Ortega*, 480 U.S. 709 (1987), <https://supreme.justia.com/cases/federal/us/480/709/>.

²² *Pollo v. Constantino-David*, supra note 21.

²³ *O'Connor v. Ortega*, supra note 23..

²⁴ *Pollo v. Constantino-David*, supra note 21.



In 2009, Metropolitan Manila Development Authority Resolution 09-02²⁵ authorized the use of digital cameras to apprehend traffic violators and emphasized “no physical contact” in enforcement. MMDA Resolution 10-02 (2010)²⁶ expanded and clarified traffic monitoring rules, specifying traffic rules enforcement. It may have included guidance for business or private cooperation but contained no explicit discussion of privacy.

MMDA Memorandum Circular 05-A (2011)²⁷ provided operational guidelines for CCTV-based enforcement under MMDA regulations and procedural details for traffic monitoring.

This period preceded the Data Privacy Act (RA10173, 2012),²⁸ which explains why CCTV operations proceeded with minimal regulatory attention to privacy safeguards. Although existing statutes such as Civil Code Art.26(1) (1950)²⁹, Anti-Wiretapping Act of 1965 (RA4200)³⁰, and Anti-Photo and Video Voyeurism Act of 2009 (RA9995)³¹ recognized privacy in residences and private communications and criminalized voyeuristic recordings. However, these laws were not applied to administrative or commercial CCTV operations, leaving gaps in protection regarding signage, retention policies, and procedural safeguards.

The expansion of CCTV-based traffic enforcement during this period was driven primarily by administrative fiat, without legislative debate or formal privacy assessments. This approach illustrates a broader principle recognized by the Philippine Supreme Court

In *Ople v. Torres* (G.R. No. 127685, 1998),³² the Court struck down an administrative order creating a national identification system because it required a legislative act and was broad, vague, and over-broad, putting the

²⁵ Metropolitan Manila Development Authority Resolution No. 09-02 (Jan. 21, 2009) (Phil.), available at <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/11/46753>.

²⁶ Metropolitan Manila Development Authority Resolution No. 10-02 (Jan. 21, 2010) (Phil.), available at <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/10/49975>.

²⁷ Metropolitan Manila Development Authority Memorandum Circular No. 05-A, s. 2011 (Apr. 8, 2011) (Phil.), available at <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/10/52364>.

²⁸ *Data Privacy Act*, supra note 3.

²⁹ Republic Act No. 386, Civil Code of the Philippines art. 26(1) (1950) (Phil.), available at <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/2/53360>

³⁰ *Anti-Wiretapping Act*, supra note 4.

³¹ Republic Act No. 9995, *Anti-Photo and Video Voyeurism Act of 2009* (Phil.), available at https://lawphil.net/statutes/repacts/ra2010/ra_9995_2010.html.

³² *Ople v. Torres*, G.R. No. 127685, July 23, 1998, available at https://lawphil.net/judjuris/juri1998/jul1998/gr_127685_1998.html.



people's right to privacy in clear and present danger. By analogy, large-scale data-processing systems like the MMDA CCTV network, if deployed without legislative authorization or baseline safeguards such as retention limits or public notice, could be constitutionally vulnerable.

Phase 2: (2012–2020)

The Data Privacy Act of 2012 (RA 10173)³³ introduced comprehensive principles applicable to CCTV but omitted CCTV-specific provisions. The law required legitimate purpose, proportionality, mandatory signage, limited retention with disposal policies, data subject rights, and security measures.

Yet the law established no hierarchy clarifying how Data Privacy Act³⁴ requirements interact with Metropolitan Manila Development Authority mandates.

Spouses Hing v. Choachuy (2013),³⁵ marked the first Supreme Court engagement with CCTV privacy issues. The Court held that cameras “revolving”³⁶ from respondents’ property to span adjacent private lots constituted a violation of privacy, emphasizing proportionality: if security were the purpose, “the camera should revolve only towards their properties at the back.”³⁷

The National Privacy Commission, established under the Data Privacy Act,³⁸ issued NPC Circular 17-01 (2017),³⁹ the first guidance on CCTV, introducing registration requirements, legitimate interest tests, and data subject rights. While the Circular applied to private entities, enforcement over government agencies remained procedurally limited rather than jurisdictionally excluded.

³³ *Data Privacy Act*, supra note 3.

³⁴ *Id.*

³⁵ *Spouses Hing v. Choachuy*, supra note 11

³⁶ *Id.*

³⁷ *Id.*

³⁸ *Data Privacy Act*, supra note 3.

³⁹ Nat'l Privacy Comm'n [Phil.], Circ. No. 17-01, Registration of Data Processing Systems and Notifications Regarding Automated Decision-Making (July 31, 2017), <https://privacy.gov.ph/npc-circular-17-01-registration-data-processing-notifications-regarding-automated-decision-making/>.



The Safe Spaces Act (RA 11313, 2019)⁴⁰ created additional tension by mandating CCTV installation in public areas to prevent harassment while simultaneously criminalizing misuse of footage. The Act does not provide an explicit hierarchy for reconciling privacy with safety obligations, leaving potential conflicts unresolved.

The Cybercrime Prevention Act (RA 10175, 2012)⁴¹ authorized law enforcement to collect CCTV footage as "computer data,"⁴² but *Disini v. Secretary of Justice* (2014)⁴³ limited real-time digital data collection under constitutional safeguards. This established that surveillance powers, though granted, remain subject to restraint, enforceable primarily through case-by-case litigation.

Phase 3: (2022–2024)

NPC Circular 2022-04⁴⁴ provided the first comprehensive CCTV framework, introducing proportionality standards, retention limits, signage, and access logs. Yet as "just a circular,"⁴⁵ it bound no government agencies and carried no criminal penalties for violations.

Competing mandates multiplied. DILG Memorandum Circular 2022-060⁴⁶ pushed local government units (LGUs) toward CCTV expansion for crime prevention. Business owners faced contradictory obligations. LGUs threatened to deny permits without CCTV. The National Privacy Commission

⁴⁰ *Safe Spaces Act*, supra note 2.

⁴¹ Republic Act No. 10175, An Act Defining Cybercrime, Providing for the Prevention, Investigation, Suppression and the Imposition of Penalties Therefor and for Other Purposes (Cybercrime Prevention Act of 2012) (Phil.), Sept. 12, 2012, available at https://lawphil.net/statutes/repacts/ra2012/ra_10175_2012.html.

⁴² *Id.*

⁴³ Jose Jesus M. Disini, Jr. et al. v. Secretary of Justice, G.R. No. 203335, 22 Apr. 2014 (Phil.), available at https://lawphil.net/judjuris/juri2014/apr2014/gr_203335_2014.html

⁴⁴ National Privacy Commission, Circular No. 2022-04: Registration of Personal Data Processing Systems, Notification Regarding Automated Decision-Making or Profiling, Designation of Data Protection Officer, and NPC Seal of Registration (Phil.), Jan. 11 2023, available at <https://www.privacy.gov.ph/wp-content/uploads/2023/05/Circular-2022-04-1.pdf>.

⁴⁵ *Id.*

⁴⁶ Department of the Interior and Local Government (Phil.), Memorandum Circular No. 2022-060: Amending Memorandum Circular No. 2014-119, Directing Cities, Capital Towns to Require the Installation of Closed-Circuit Televisions (CCTV) for Certain Business Establishments in Accordance with Section 16 (General Welfare Clause) of Republic Act No. 7160, to Support the Maintenance of Peace and Order and Public Safety (Phil.), [date of signing if available], available at <https://www.dilg.gov.ph/issuances/mc/Amending-DILG-MC-No-2014-119-Titled-Directing-Cities-Capital-Towns-to-Require-the-Installation-of-Closed-Circuit-Televisions-CCTV-for-certain-Business-Establishments-in-Accordance-with-section-16-General-Welfare-Clause-of-Republic-Act-No-7160-to-Support-the-Maintenance-of-Peace-and-Order-and-Public-Safety/3557>.



threatened penalties for privacy violations. The system pressured compliance with requirements that conflicted at foundational levels.

The Philippine Identification System Act (RA 11055, 2018)⁴⁷ established biometric data collection on a national scale. Combined with facial recognition technology, which is technology already deployed before regulatory frameworks emerged. It created mass surveillance capability. The statute's relationship to CCTV integration remained unaddressed.

Most troublingly, NPC Circular 2024-02⁴⁸ issued biometric and facial recognition guidelines years after technology deployment. Regulation chased technology rather than anticipating it. AI analytics, real-time facial recognition, database integration, none received legislative framework, only belated administrative guidance.

The Safe Philippines Project,⁴⁹ jointly implemented by the DILG and Huawei under Chinese financing, epitomized these governance failures. Conceived as a national public-safety network linking thousands of AI-enabled cameras, it advanced without comprehensive legislation, public consultation, or privacy safeguards, illustrating how Philippine regulation continued to chase, rather than shape, technological surveillance capacity.⁵⁰

A Comprehensive Law

The fragmentation detailed above is not merely inefficient but constitutionally untenable. When the DILG threatens business permit denials for non-compliance with CCTV mandates while the NPC simultaneously threatens penalties for privacy violations arising from those same installations, the rule of law itself fractures. Business owners and local government units cannot simultaneously comply with contradictory legal obligations. This places private actors in an impossible position where any choice invites sanction,

⁴⁷ Republic Act No. 11055, An Act Establishing the Philippine Identification System (PhilSys) (Phil.), Aug. 6, 2018, available at https://lawphil.net/statutes/repacts/ra2018/ra_11055_2018.html.

⁴⁸ National Privacy Commission, Circular No. 2024-02: Closed-Circuit Television (CCTV) Systems (Phil.), Aug. 12 2024, available at

<https://www.privacy.gov.ph/wp-content/uploads/2024/08/NPC-Circular-No.-2024-02-CCTV-Systems.pdf>.

⁴⁹ Department of the Interior and Local Government (Phil.), *Safe Philippines Project* (2019), available at <https://sdg.depdev.gov.ph/safe-philippines-project/>.

⁵⁰ Stratbase ADR Inst. for Strategic & Int'l Stud., *Are the Risks of the Safe Philippines Project Worth the Potential Benefits?*, BRI Monitor (2021), available at <https://www.brimonitor.org/wp-content/uploads/2024/08/SAFE-revised.pdf>.



violating the fundamental principle that laws must provide fair notice of prohibited conduct.

More critically, when surveillance mandates proliferate through administrative circulars rather than legislative enactment, they circumvent the deliberative process that constitutional governance requires for measures affecting fundamental rights.

The current regime effectively delegates constitutional balancing to whoever wields enforcement authority at any given moment: the traffic enforcer citing MMDA resolutions, the business permit officer invoking DILG circulars, or the NPC compliance officer applying data privacy standards. This approach inverts constitutional hierarchy by allowing administrative convenience to trump fundamental rights analysis.

Philippine jurisprudence demands that government action affecting constitutional liberties satisfy the balancing test articulated in *Pollo* (justified at inception and proportionate in scope). Yet no single authority currently performs this constitutional analysis across competing mandates. The absence of comprehensive legislation does not create regulatory flexibility but rather creates a void where constitutional protections become unenforceable because no tribunal possesses authority to reconcile the contradictions. Only congressional action establishing clear hierarchies, binding standards, and unified enforcement can restore constitutional coherence to surveillance regulation.

Comparative Law

Other jurisdictions demonstrate that comprehensive CCTV legislation is both feasible and effective. The European Union's General Data Protection Regulation establishes binding standards applicable to public and private actors,⁵¹ creates independent oversight authorities with enforcement power,⁵² and provides accessible remedies through data protection authorities.⁵³ While the Philippines need not adopt European models wholesale, the GDPR

⁵¹ Regulation 2016/679, of the European Parliament and of the Council of 27 April 2016, art. 6(1), 2016 O.J. (L 119) 1, 36 [hereinafter GDPR], available at <https://gdpr-info.eu/>.

⁵² *Id.* arts. 51(1), 52, 58(2); European Data Protection Board, Guidelines 3/2019 on Processing of Personal Data Through Video Devices, ¶ 101 (Jan. 29, 2020).

⁵³ GDPR, *supra* note 56, arts. 77(1), 78, 79(1); see also Joined Cases C-26/22 & C-64/22, SCHUFA Holding AG v. Datenschutzkonferenz, ECLI:EU:C:2023:958 (Dec. 7, 2023).



demonstrates that coherent surveillance regulation can balance security and privacy through clear legal hierarchies.⁵⁴

Singapore's Personal Data Protection Act similarly illustrates how comprehensive legislation can accommodate both government surveillance needs and privacy protection⁵⁵ through statutory frameworks that bind all actors, establish technological standards, and create enforcement mechanisms with real consequences.⁵⁶

The Philippines possesses the constitutional foundation, jurisprudential framework, and administrative experience to enact similarly comprehensive legislation. What remains absent is legislative consolidation.

Urgency of Action

The window for meaningful regulation narrows as surveillance infrastructure becomes technologically and politically entrenched. The Safe Philippines Project advances without comprehensive legislative framework,⁵⁷ while facial recognition capabilities integrate with PhilSys biometric databases⁵⁸ all before NPC Circular 2024-02 belatedly addressed such technologies.⁵⁹ When administrative systems process personal data on a massive scale without legislative authorization, they place "the people's right to privacy in clear and present danger,"⁶⁰ creating "a comprehensive cradle-to-grave dossier on an individual" enabling "a covert invitation to misuse, a temptation that may be too great for some of our authorities to resist."⁶¹ Each technological advancement without regulatory framework creates constituencies invested in existing practices, making retroactive regulation exponentially more difficult. Surveillance creep operates incrementally.⁶² Traffic cameras become crime-prevention networks become AI-enabled facial recognition systems, each step appearing modest yet collectively producing systems where "the individual lacks control over what

⁵⁴ GDPR, *supra* note 56, art. 6(3), recital 45, arts. 83(5)-(6).

⁵⁵ Personal Data Protection Act 2012 (Act 26 of 2012) (Sing.) [hereinafter PDPA]; Personal Data Protection Commission, Advisory Guidelines on the Personal Data Protection Act for Selected Topics ¶¶ 6.1-6.7 (revised May 2024), available at <https://sso.agc.gov.sg/Act/PDPA2012>.

⁵⁶ *Id.*

⁵⁷ *Safe Philippines Project*, *supra* note 54.

⁵⁸ *Philippine Identification System Act*, *supra* note 52.

⁵⁹ NPC Circular 2024-02, *supra* note 53.

⁶⁰ *Ople v. Torres*, *supra* note 10.

⁶¹ *Id.*

⁶² David Lyon, *Surveillance Studies: An Overview* 23-45 (2007)



can be read or placed on his ID, much less verify the correctness of the data encoded," threatening "the very abuses that the Bill of Rights seeks to prevent."⁶³ Once pervasive surveillance becomes normalized, *Morfe v. Mutuc*'s warning that "all the forces of a technological age—industrialization, urbanization, and organization—operate to narrow the area of privacy and facilitate intrusion into it,"⁶⁴ such that "the capacity to maintain and support this enclave of private life marks the difference between a democratic and a totalitarian society"⁶⁵ becomes practically unenforceable through retroactive dismantlement. The choice facing Philippine legislators is not whether to regulate CCTV comprehensively, but whether to act before technological capabilities and normalized practices render meaningful oversight impossible. That moment, once passed, cannot be recovered without constitutional crisis.

Conclusion

Fifteen years of piecemeal regulatory development have produced a framework that simultaneously mandates surveillance, restricts surveillance, and permits surveillance without resolving contradictions among these mandates. Philippine courts recognize privacy as a fundamental right and have applied sophisticated analytical frameworks to protect it.⁶⁶ What remains lacking is legislative action consolidating contradictory mandates into a coherent statutory structure.

The path forward requires legislation that: (1) establishes clear hierarchy when surveillance mandates conflict with privacy protections; (2) imposes binding standards on government and private actors alike; (3) creates genuinely independent oversight with real authority; (4) provides procedurally accessible remedies for affected individuals; and (5) establishes technology-neutral principles adaptable to inevitable surveillance innovations.

Without such measures, privacy rights exist in theory but remain unenforceable in practice, safeguards apply selectively, and administrative guidance operates as if it can override statutory mandates. Such a system fails

⁶³ *Morfe v. Mutuc*, *supra* note 8.

⁶⁴ *Id.*

⁶⁵ *Id.*

⁶⁶ *Ople v. Torres*, G.R. No. 127685, July 23, 1998, available at https://lawphil.net/judjuris/juri1998/jul1998/gr_127685_1998.html. See also *Velasco v. Secretary of Justice*, G.R. No. 171947, Nov. 13, 2008, recognizing privacy as a fundamental constitutional right.



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both those seeking genuine privacy protection and those pursuing legitimate security objectives who deserve legal certainty.

Effective legislation requires political will but not revolutionary change. It demands consolidation of existing jurisprudence and administrative experience into clear, binding legal rules applicable across government and society. The question is not whether the Philippines can enact comprehensive CCTV legislation, but whether it will act before pervasive surveillance renders meaningful legal protection technically and politically impossible. The window for coherent regulation remains open, but it will not remain so indefinitely.

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